

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

**TRACY SMITH, PARENT AND NATURAL
GUARDIAN OF JAVON MORRIS**

Plaintiff,

-against-

Index No:
Summons

**THE CITY OF NEW YORK, POLICE OFFICER
GASPERETTI OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950480, POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950074, AND POLICE OFFICER
JOHN AND/OR JANE DOE NUMBERS 1-50**

Defendants.

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the plaintiff a copy of your answer, or, if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20)days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Queens County as the place of venue based on location of incident.

Dated: New York, NY 10007
September 27th 2013



Ronald P. Hart, Esq.
Attorney for the PLAINTIFF
225 Broadway, Suite 2515
New York, NY 10007
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

**TRACY SMITH, PARENT AND NATURAL
GUARDIAN OF JAVON MORRIS**

Plaintiff,

-against-

Index No:
**Verified
COMPLAINT**

**THE CITY OF NEW YORK, POLICE OFFICER
GASPERETTI OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950480, POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950074, AND POLICE OFFICER
JOHN AND/OR JANE DOE NUMBERS 1-50**

Defendants.

X

NOW COMES the Plaintiff, **JAVON MORRIS**, by and through his attorney,
RONALD P. HART, ESQ. as and for his complaint against the Defendants, and respectfully
shows to this Court and allege as follows:

PARTIES:

- 1) That the Plaintiff, **JAVON MORRIS** (Hereinafter "Plaintiff") is presently a resident of the city of New York, in the State of New York.
- 2) At the time of the incident, the Plaintiff was a resident of the City and State of New York and County of New York.
- 3) Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
- 4) Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated,

maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendant Police Officers **JOHN/JANE DOES 1-50**.

5) Upon information and belief, at all times hereinafter mentioned, and on or prior to October 25, 2012, Defendants, Police Officers **JOHN/JANE DOES 1-50**, were employed by Defendant, **THE CITY OF NEW YORK**, as police officers.

6) This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the united states, and under federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq. and state law for malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.

7) This action also arises under and the rights under the Constitution and laws of the State of New York.

8) Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employces, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statuses, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW YORK** and the County of new York, and under the authority of their office as police officers of said state, City and County.

9) The amount in controversy is \$75,000 exclusive interest.

PENDANT STATE CLAIMS:

10) That Notice of Plaintiff's Claim for Damages for False arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the 14th day of December 2012.

11) That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said Defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
FALSE ARREST AND FALSE IMPRISONMENT:

12) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-11 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

13) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter "Plaintiff"), met up with, Shaiquan Wilson, and Darnell Anderson on 164th Street and Jamaica Avenue.

14) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

15) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park, they began walking towards the basketball court area.

16) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

17) The Police Officers yelled for them to get down, they complied.

18) Plaintiff asked the officers what they had done and the police responded by saying, **“SHUT UP”**.

19) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne was overheard by Plaintiff and others state they were not the guys who had assaulted him.

20) One Police Officer asked, “Should we take them back to the park and let them go,” and another Police Officers responded by saying, “No take them down to the 103rd Precinct.”

21) Later on that night Complainant Terrence Payne identified Claimant as the person whom had assaulted him.

22) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000 dollars cash or \$75,000 dollars bond.

23) Plaintiff was then remanded to the Boat (VCBC). That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being immediately released.

24) Plaintiff later found out that charges were dismissed because the Complainant fully recanted his statement.

25) That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees who although they knew

the charges were false nevertheless charged plaintiff because they needed to make a “collar” and support police statics.

26) That because of the outrageous conduct of the police in knowing that Plaintiff were innocent of the charges but forcing the victim to falsely state that Plaintiff and his friends attacked him, Plaintiff was forced to spend two weeks in jail for a crime the police knew he did not commit.

27) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body therefrom, were cause wholly and solely by reason of the negligence of the Defendants, their agents, servants, and employees without any negligence on the part of Plaintiff.

28) That the acts of the Defendants, their agents, servants and employees in failing to properly discipline, hire and train their employees, agents and servants presents a clear and present danger to the citizens of the City and State of New York.

29) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered sick, sore, lame and so remains by the actions of the Defendants, their agents, servants and employees.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALFOF PLAINTIFF JAVON MORRIS
NEGLIGENCE IN TRAINING AND SUPERVISING:

30) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-29 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

31) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter “Plaintiff”), met up with, Shaiquan Wilson, and Darnell Anderson on 164th Street and Jamaica Avenue.

32) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

33) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park, they began walking towards the basketball court area.

34) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

35) The Police Officers yelled for them to get down, they complied.

36) Plaintiff asked the officers what they had done and the police responded by saying, **“SHUT UP”**.

37) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne was overheard by the plaintiff and others state that they were not the guys who had assaulted him.

38) One Police Officer then asked, “Should we take them back to the park and let them go,” and another Police Officers responded by saying, “No take them down to the 103rd Precinct.”

39) Later on that night Complainant Terrence Payne identified Claimant as the person whom had assaulted him.

40) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.

41) Plaintiff was remanded to the Boat (VCBC). That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.

42) Plaintiff later found out that charges were dismissed because Complainant recanted his false statement that the police coerced him into making.

43) That the Defendant, **THE CITY OF NEW YORK**, their agents, servants, and employees, carelessly and recklessly failed to properly train and supervise their employees, in particular, the employees named Defendants Police officers **JOHN/JANE DOES 1-50** in that they failed to train their employees to control their tempers and exercise the proper deportment and temperament; and to otherwise act as reasonable, prudent police officers; failed to give them proper instruction as to their deportment, behavior, and conduct as representatives of their employers; and, in that the Defendants, their agents, servants and employees were otherwise reckless, careless and negligent in the performance of their duties.

47) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body there-from were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

48) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
NEGLIGENCE IN PERFORMANCE OF DUTIES:

49) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-48 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

44) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter "Plaintiff") , met up with, Shaiquan Wilson, and Darnell Anderseon on 164th Street and Jamaica Avenue.

45) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

46) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

47) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

48) The Police Officers yelled for them to get down, they complied.

49) Plaintiff asked the officers what they had done and the police responded by saying, "**SHUT UP**".

50) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him.

51) One Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

52) Later on that night Complainant Terrence Payne identified Claimant as the person whom had assaulted him.

53) Plaintiff was arraigned on or about October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.

54) Plaintiff was remanded to the Boat (VCBC). That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.

55) Plaintiff later discovered that charges were dismissed because Complainant recanted his false statement that the police forced him to make.

56) That the Defendants, its agents, servants and employees negligently, carelessly and recklessly performed their police duties in that they failed to use such care in the performance of their duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and negligently arrested the Plaintiff without making a proper investigation; in that they were negligent, careless and reckless in the manner in which they operated, controlled and maintained their agents, servants, and employees; and in that the Defendants, their agents, employees and servants were otherwise negligent, careless, and reckless.

50) That the aforesaid occurrence, to wit: the false arrest and imprisonment, resulting injuries to mind and body these from, were caused wholly and solely by reason of the negligence of the Defendant, its agents, servants and employees without any negligence on the part of the Plaintiff.

51) That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
FOR MALICIOUS PROSECUTION:

52) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-51 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

53) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter “Plaintiff”) , met up with, Shaiquan Wilson, and Darnell Anderson on 164th Street and Jamaica Avenue.

54) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

55) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park, they began walking towards the basketball court area.

56) Approximately five (5) police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

57) The Police Officers yelled for them to get down, they complied.

58) Plaintiff asked the officers what they had done and the police responded by saying, “**SHUT UP**”.

59) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne who was overheard by the Plaintiff and other state that they were not the guys who had assaulted him.

60) One Police Officer asked, "Should we take them back to the park and let them go," because the Complainant said they were not the person who had assaulted them. Another Police Officers responded by saying, "No take them down to the 103rd Precinct."

61) Later on that night, Complainant Terrence Payne under pressure from the police Changed his story and now identified Claimant and his friends as the persons who assaulted him.

62) Plaintiff was later arraigned on October 27th, 2012, and was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.

63) Plaintiff was remanded to the Boat(VCBC). That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.

64) Plaintiff later found out that charges were dismissed because Complainant recanted his statement. Plaintiff was needlessly arrested and place through the system being forced to attend arraignment and other proceeding and sit in jail by police officers who knew he did not commit the crimes for which he was being charged because the officers were told by the Complainant that Plaintiff and his friends did not assault him.

65) That by reason of the aforesaid unlawful and malicious prosecution and criminal

charges and hearings, the Plaintiff was deprived of his liberty was subjected to great indignity, pain, humiliation, and great distress of mind and body and was held up to scorn and ridicule, was injured in character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said Plaintiff has been otherwise damaged.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
FOR NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS:

66) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-65 of this Summons and Complaint as though fully plead and alleged in their entirety below.

67) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter "Plaintiff"), met up with, Shaiquan Wilson, and Darnell Anderson on 164th Street and Jamaica Avenue.

68) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

69) Plaintiff and friends were horse playing around on their way to the park. Once they arrived at the park, they began walking towards the basketball court area.

70) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

71) The Police Officers yelled for them to get down, they complied.

72) Plaintiff asked the officers what they had done and the police responded by saying, **“SHUT UP”**.

73) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne was overheard by Plaintiff and his friends tell the police they were not the guys who had assaulted him.

74) Because the police were told by the Complainant that Plaintiff and his friend did not assault him, one Police Officer asked, “Should we take them back to the park and let them go,” another Police Officer responded by saying, “No take them down to the 103rd Precinct.”

75) Later on that night, Complainant Terrence Payne under pressure from the police changed his story and now identified Plaintiff and his friends as the persons who had assaulted him.

76) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.

77) Plaintiff was remanded to the Boat (VCBC). That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.

78) Plaintiff later found out that charges were dismissed because Complainant recanted his statement.

79) That due to defendants' negligent and reckless conduct of negligently and recklessly arresting Plaintiff a teenage black youth, who they knew did not commit the crimes for which he was being charged because the complainant told the police Plaintiff was not the person who assaulted him went beyond the bound of decency and what the citizenry would expect of the police under the circumstances; especially arresting minority youth the police were absolutely certain knew did not commit the charges crimes. That this arrest went beyond was could be considered reasonable and tolerable in a civilized society and shocks the conscious of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

80) That due to defendants' outrageous conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS:

81) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-80 of this Complaint as though fully plead and re-alleged in their entirety below.

82) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter "Plaintiff"), met up with, and Darnell Anderson on 164th Street and Jamaica Avenue.

83) They then proceeded to walk to Kings Parks located on Jamaica

between 150th and one 153rd Street to play basketball.

84) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

85) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

86) They yelled for them to get down, they complied. Plaintiff asked the officers what they had done and the police responded by saying, **“SHUT UP”**.

87) They then drove Plaintiff along with Javon Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him.

88) One Police Officer asked, “Should we take them back to the park and let them go,” and another Police Officers responded by saying, “No take them down to the 103rd Precinct.”

89) Later on that night, Complainant Terrence Payne identified Plaintiff as the person whom had assaulted him.

90) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond. Plaintiff was remanded to the Boat(VCBC). That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being

released. Plaintiff later found out that charges were dismissed because Complainant recanted his statement.

91) That due to Defendants' conduct, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, by the actions of the Defendants.

92) That due to defendants' intentional and reckless conduct of recklessly arresting Plaintiff a teenage black youth, who they knew did not commit the crimes for which he was being charged because the complainant in the police presence told the police Plaintiff was not the person who assaulted him went beyond the bound of decency and what the citizenry would expect of the police under the circumstances; especially arresting minority youth that the police absolutely knew did not commit the crimes he was being charged with. This arrest went beyond what could be considered reasonable and tolerable in a civilized society and shocks the conscience of the ordinary citizen. Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great mental pain, and he was rendered emotionally and mentally distressed and so remains. Plaintiff demands punitive damages to deter similar police officers from engaging in such Reprehensible conduct in the future.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
FOR CIVIL RIGHT ACTION 42 USC §1983:

93) The Plaintiff, JAVON MORRIS, hereby incorporates by reference

Each and every preceding paragraph 1 through 92 of this Complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

94) The jurisdiction is founded upon the existence of a Federal Question.

95) That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

96) That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United States (42 USC § 1983, 1981, 1985 (3), 1988) and arising under the federal constitutional laws and statutes as well as the laws, statutes, and constitution of the State of New York.

97) The amount in controversy exceeds, exclusive of interest and costs are \$75,000, the jurisdictional limits of this and any other court having jurisdiction.

98) The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned and deprived of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983, 1985(3), & 1988 and the Constitution of the State of New York.

99) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS**

(Hereinafter "Plaintiff") , met up with, Shaiquan Wilson, and Darnell Anderseon on 164th Street and Jamaica Avenue.

100) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

101) Plaintiff and friends was horse playing around on their way to the park.
Once they arrived at the park they began walking towards the basketball court area.

102) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

103) The Police Officers acting under color of state law who were duty yelled for them to get down, they complied.

104) Plaintiff asked the officers what they had done and the police responded by saying, "**SHUT UP**".

105) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him.

106) Because the Complainant told the police that Plaintiff and his friend did not assault him, one Police Officer asked, "Should we take them back to the park and let them go," and another Police Officers responded by saying, "No take them down to the 103rd Precinct."

- 107) Later on that night, Complainant Terrence Payne identified Claimant as the person whom had assaulted him.
- 108) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.
- 109) Plaintiff was remanded to the Boat (VCBC). That is where he remained until November 7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.
- 110) Plaintiff later found out that charges were dismissed because Complainant recanted his false statement that the police forced him to make.
- 111) Plaintiff and his friends were arrested because the NYC police department has history, pattern, custom and practice of illegally stopping, frisking, and arresting minority youth for crimes they know were not committed by these youth.
- 112) More to the point, the NYPD has received directives from the very top, including Commissioner Kelly to stop minority youth on the street to scare them into allegedly not committing crimes.
- 113) This policy and custom has not worked and forced minority youth such as the plaintiff to be arrested for crimes the police know they did not commit.
- 114) The NYP has a custom and policy of racial discrimination condoned by the City if New York when it comes to the minority youth of arresting them where they are specifically told and possess more than adequate information the minority persons in question are

innocent, yet they nonetheless arrest them to obtain statics that they are working hard to fight crime.

115) The polices of the NYPD which is aimed primarily at blacks and minority youth in particular of illegally arresting them is condoned by supervising police officers even though the cop on the beat despises arresting innocent persons for crimes they knew those persons did not commit.

116) The police John and Jane Does 1-10 named above in engaging in the misconduct and illegal conduct described above, of falsely arresting and imprisoning Plaintiff, a minority youth, deprived Plaintiff of his civil rights pursuant to 42 U.S.C.A. § 1983. That the aforementioned misuse of authority and power by Defendants Police Officers **JOHN/JANE DOES 1-50** was egregious and shocking to the conscience. As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful confinement against will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

117) Such deprivation were in violation of the rights secured to Plaintiff by the Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983 and the laws, ordinances and statues of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
- b. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to conduct warrantless arrests of minority

youth on criminal charges they full well knew they did not commit without justification because such conduct was condoned by the NYPD and the City of New York.

- c. The arrest and imprisonment of Plaintiff was not justified by probable cause or other legal privilege as the police were specifically told Plaintiff was not the assailant; Nevertheless, Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- d. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- e. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
- f. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.

g. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

118) As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.

119) The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.

120) The arrest and imprisonment was not justified by probable cause or other legal privilege or grounds. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.

121) That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.

122) That the Plaintiff demands attorney fees should he prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK.**

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JAVON MORRIS
CIVIL RIGHTS ACTION 42 USC §§ 1985(3):

123) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-122 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

124) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS** (Hereinafter

“Plaintiff”), met up with, Shaiquan Wilson, and Darnell Anderseon on 164th Street and Jamaica Avenue.

125) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

126) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

127) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

128) The Police Officers yelled for them to get down, they complied.

129) Plaintiff asked the officers what they had done and the police responded by saying, “**SHUT UP**”.

130) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him.

131) One Police Officer who was white asked, “Should we take them back to the park and let them go,” and another Police Officers responded by saying, “No take them down to the 103rd Precinct.”

132) Later on that night Complainant Terrence Payne identified Claimant as the person who assaulted him.

133) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.

134) Plaintiff was remanded to the Boat. That is where he remained until November 6-7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.

135) Plaintiff later found out that charges were dismissed because Complainant recanted his false statement that the police forced him to make under threat that he himself would be arrested.

136) The Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested by the two white officers who conspired to falsely arrest and imprison him which deprived him of his Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC §§ 1985(3) and the Constitution of the State of new York.

137) Plaintiff and his friends were arrested because they were black and regrettably the NYC police department has history of racial discrimination, a pattern, custom and practice of illegally stopping, frisking, and arresting minority youth for crimes they know were not committed by these youth. These youths are nonetheless arrested because they are deemed throw away youth who can help the NYPD satisfy their crime statics.

138) More to the point, the NYPD white police officers routinely received directives

from the very top, including Commissioner Kelly to stop minority and black youth on the street to scare them into allegedly not committing crimes.

139) This illegal police policy and custom has not worked and forced minority youth such as the plaintiff to be intentionally falsely arrested for crimes the police knew they did not commit.

140) The NYP has a custom and policy condoned by the City of New York when it comes to the minority youth of arresting them where they are specifically told and possess more than adequate information the minority persons in question are innocent, yet the police nonetheless arrest them to obtain statistics to prove they are working hard to fight crime.

141) The policies of the NYPD which is aimed primarily at blacks and minority youth in particular of illegally arresting them is condoned by supervising police officers even though the cop on the beat despises arresting innocent persons for crimes they knew those persons did not commit.

142) That at all times hereinafter mentioned, the Defendants Police Officers **JOHN/JANE DOES 1-50** each of them, separately and in concert conspired for the purpose of depriving, either directly or indirectly, Plaintiff of the equal protection of the laws, or of equal privileges and immunities under the laws in that said Defendants did engage in the illegal conduct hereinbefore described and thus did deprive the Plaintiff of the equal protection of the laws, or of equal privileges and immunities secured to Plaintiff by the First and Fourteenth Amendments to the Constitution of the United States and the Laws of the United States. The unlawful and illegal conduct of the Defendants deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York:

- h. The right of the Plaintiff to be secure in their persons and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States
- i. the right of the Plaintiff to be informed of the nature and cause of the accusation against him so secured to them under the sixth and fourteenth amendments of the Constitution of the United States; and,
- j. the right of the Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

143) That by reason of the aforesaid violations, conspiracy and false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled him to abandon his rights and privileges as provided to him in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction, particularly the Plaintiff thereof to be deprived of his rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was prevented from attending his

usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

144) That by reason of the aforesaid violations, to wit the false arrest, false imprisonment caused by the Defendants, who wrongfully deprived the Plaintiff and compel his abandon his rights and privileges as provided to his in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.

AS AND FOR THE NINTH CAUSE OF ACTION
ON BEHALF OF JAVON MORRIS
FOR ATTORNEY FEES PURUSANT TO 42 USC SECTION 1988:

145) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-135 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.

146) That should Plaintiff be successful on his 1983 and other federal claims, he will seek attorney fees against these Defendants and the City of New York.

AS AND FOR THE TENTH CAUSE OF ACTION
ON BEHALF OF JAVON MORRIS
FOR RACIAL DISCRIMINATION PURUSANT TO 42 USC SECTION 1981:

147) The Plaintiff, **JAVON MORRIS**, hereby incorporates by reference each and every preceding paragraph 1-146 of this Complaint as though fully plead and re-alleged in their entirety below.

148) That on or about October 25th, 2012, Plaintiff, **JAVON MORRIS**

(Hereinafter “Plaintiff”), met up with, Shaiquan Wilson, and Darnell Anderson on 164th Street and Jamaica Avenue.

149) They then proceeded to walk to Kings Parks located on Jamaica between 150th and 153rd Street to play basketball.

150) Plaintiff and friends was horse playing around on their way to the park. Once they arrived at the park they began walking towards the basketball court area.

151) Approximately five (5) Police vehicles entered the park surrounding Plaintiff and friends with their guns drawn.

152) The Police Officers yelled for them to get down, they complied.

153) Plaintiff asked the officers what they had done and the police responded by saying, “**SHUT UP**”.

154) The police officers then drove Plaintiff along with Shaiquan Wilson and Darnell Anderson over to 92-17 Jamaica Avenue (NYC Subway-Jamaica Center) where Complainant Terrence Payne stated that they were not the guys that had assaulted him.

155) One Police Officer asked, “Should we take them back to the park and let them go,” and another Police Officers responded by saying, “No take them down to the 103rd Precinct.”

156) Later on that night, Complainant Terrence Payne identified Claimant as the person whom had assaulted him.

157) Plaintiff was arraigned on October 27th, 2012, and he was given \$250,000.00 dollars bail, which was lowered to \$100,000.00 dollars cash or \$75,000.00 dollars bond.

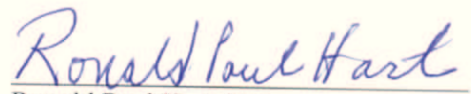
158) Plaintiff was remanded to the Boat (VCBC). That is where he remained until November 7th, 2012, when the Captain informed him that the charges were dismissed and he was being released.

159) Plaintiff later found out that charges were dismissed because Complainant recanted his statement.

160) That upon information and belief, the police do not treat other similarly situated white persons and teenagers who are not African or African Americans in the same manner that they treated the Plaintiff herein by falsely arresting them on charges the police know they did not commit. That by reason of the aforesaid violations, the Plaintiff requests the following relief:

- k. Compensatory damages in the sum which exceeds the jurisdictional limits of all lower courts.
- l. Punitive damages in the sum which exceeds the jurisdictional limits of all lower courts.
- m. An award of reasonable attorney's fees, costs and disbursements;
- n. Plaintiff requests a trial by jury of all issues involved in this complaint;
- o. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
September 27th 2013



Ronald Paul Hart, Esq.
225 Broadway, Suite 2515
New York, NY 10007
Tel: (212) 766-1443
Fax: (212) 766-0943
Email: ronaldphartesq@gmail.com

VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

TRACY SMITH, being duly sworn, hereby deposes and says that:

1. I am the CLAIMANT/PLAINTIFF in this action.

I am over eighteen years of age and reside in New York State.

2. I verify that the statements to my attorney are true to the best of my knowledge and belief.

3. All allegations made which are based upon information and belief are made after consultation with my attorney and on the basis of the information available to me at this time.

4. I further verify that I have read the foregoing *Synopsis Complaint* and that I know the contents thereof; the same are true to my knowledge, except to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true.



TRACY SMITH

Sworn to before me this
3rd day of December 2012



Notary Public

JOYCE ELIE
Notary Public, State of New York
No. 02EL6260207
Qualified in Queens County
Commission Expires April 23, 2016

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

**TRACY SMITH, PARENT AND NATURAL
GUARDIAN OF JAVON MORRIS**

Plaintiff,

-against-

**Index No:
Summons and Complaint**

**THE CITY OF NEW YORK, POLICE OFFICER
GASPERETTI OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950480, POLICE OFFICER JASON
BERNFELD OF PATROL BORO QUEENS SOUTH,
TAX REG#: 950074 POLICE COMMISSIONER
RAYMOND KELLY, AND POLICE OFFICER
JOHN AND/OR JANE DOE NUMBERS 1-50
Defendants.**

RONALD PAUL HART, ESQ.
Attorney(s) for the PLAINTIFF
225 Broadway Suite 2515
New York, New York 10007
Tel. (212)766-1443

**To: ALL COUNSEL
Attorney(s) for
THE DEFENDANTS:**

Service of a copy of the within SUMMONS AND COMPLAINT

Counselor(s): Please Take notice

NOTICE OF ENTRY

**that the within is a (certified) true copy of a
duly entered order in the office of the clerk of the within named court on**

NOTICE OF SETTLEMENT

**that an order for of which the within is a true copy will be presented for settlement to the
HON. one of the justices of the within named Court at the within is a (certified) true copy of
a duly entered**